

Court No. - 39

Case :- WRIT - C No. - 34280 of 2014

Petitioner :- M/S Shree Behari Forgings Pvt. Ltd. Thru' Director

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Chandan Agarwal

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner as well as Shri Chandan Agarwal, learned counsel for the respondent nos. 1 and 2.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 22.05.2014 issued by the respondent No. 2, for additional security.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner further submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the petitioners also submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

List the case along with other connected matters on 21st July, 2014.

Order Date :- 7.7.2014

VKS

Court No. - 3

Case :- WRIT - C No. - 34280 of 2014

Petitioner :- M/S Shree Behari Forgings Pvt. Ltd. Thru Director

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Ajay Singh, Chandan Agarwal

Hon'ble Shekhar B. Saraf, J.

Hon'ble Prashant Kumar, J.

Heard learned counsel appearing on behalf of the parties.

This petition has been filed for quashing the demand notice requiring the petitioner to pay additional security.

It is pointed out by learned counsel for the parties that the issues raised in this petition have been decided against the petitioner in Writ-C No.30898 of 2016 (**M/s Dev Prayag Paper Mill (Pvt.) Vs. State of U.P. & Ors.**) by judgment and order dated 21 March, 2017 whereby this Court has dismissed the writ petition after coming to the conclusion that the demand of additional security by the distribution licensee is not bad.

For all the reasons stated in the aforesaid judgment, this petition stands dismissed.

Order Date :- 4.8.2025

Rakesh

(Prashant Kumar J.) (Shekhar B. Saraf, J.)